CORAM: HER WORSHIP BIANCA GYAMERA-BEEKO MAGISTRATE SITTING AT THE DISTRICT COURT MAMPONG-AKWAPIM ON 23RD DAY OF MAY, 2025.

SUIT NO: A1/15/24

THE REPUBLIC

VRS.

PRINCE KOTEY & 8 ORS

1st Accused Person present.

Chief Inspector Nortey for the Republic.

JUDGMENT.

The accused persons in this matter are before this court for the following offences.

Count one

Statement of offence: Conspiracy to commit unlawful harm, cause unlawful damage, and steal contrary to section 23(1) of the Criminal Offences Act, 1960 (Act 29)

Particulars of offence: Prince Kotey, 34 years, a farmer; Nana, Ibrahim Baba and five others names unknown, all at large on 25th July, 2023 at 8:00am at Asempaneye village near Tinkong agreed with a common purpose to commit unlawful harm, cause unlawful damage, and steal.

Count two

Statement of offence: Causing unlawful damage contrary to section 172 (1) (b) of the Criminal Offences Act, 1960 (Act 29).

Particulars of offence: Prince Kotey, 34 years, a farmer; Nana, Ibrahim Baba and five others names unknown, all at large on 25th July, 2023 at 8:00am at Asempaneye village near Tinkong did intentionally and unlawfully cause damage to a Polytank, CCTV camera, solar power panel, door, one roofing sheet, two small size solar lamps, two windows, two large sizes of water containers, motor bike fog light, motor bike side cover, motor bike front mud

guard, motor bike front and back foot rest, head light cover, two cooking pots and four plates all valued at GHS9,500 the property of Anthony Richardson.

Count three

Statement of offence: Causing unlawful harm contrary to section 69 of the Criminal Offences Act, 1960 (Act 29).

Particulars of offence: Prince Kotey, 34 years, a farmer; Nana, Ibrahim Baba and five others names unknown, all at large on 25th July, 2023 at 8:00am at Asempaneye village near Tinkong did intentionally and unlawfully cause harm to Anthony Richardson by subjecting him to severe beatings with sticks and inflicted a wound on his chin.

Count four

Statement of offence: Stealing contrary to section 124(1) of the Criminal Offences Act, 1960 (Act 29).

Particulars of offence: Prince Kotey, 34 years, a farmer; Nana, Ibrahim Baba and five others names unknown, all at large on 25th July, 2023 at 8:00am at Asempaneye village near Tinkong did dishonestly appropriate Samsung smart phone valued at GHS1,500, the property of Anthony Richardson.

Plea

The 1st accused was arraigned before the court, differently constituted on 31st August, 2023 after the police had completed their investigations. He pleaded not guilty to all the four charges preferred against him.

Facts

The complainant in this matter, Anthony Richardson, is a farmer living at Asempaneye. Prince Kotey, the 1st accused (herein after referred to as as 'A1'), and the other seven accused person live at Tinkong. A1 is the caretaker of a piece of farmland owned by Joseph Tetteh. The said farmland shares a boundary with the complainant's land. The complainant and Jospeh Tetteh have for some time now been involved in a land boundary dispute. The complainant claims that A1 was digging up sand for the construction of his building on his land. On 25th July, 2023 at about 9:00 am, whilst A1 was digging sand, complainant

confronted him and attempted to seize his shovel and head pan but A1 resisted. This resulted in a fight. A1 left the scene and returned in the company of eight others to help him fight the complainant. The complainant, sensing danger, started taking photographs and videos with his android phone, and locked himself in his house. A1 and his accomplices destroyed the complainant's crops and damaged his porch door and windows. They entered the porch and damaged his solar power panel as well as complainant's poly tank, CCTV camera, two kitchen utensils, four plates, a light bulb, motor bike. A1 and his accomplices then attacked the complainant, subjected him to severe beatings, and tore off his dread locs. The complainant sustained an injury on his chin. The Accused persons also made away with the complainant's phone. The Police, consequent upon a distress call received proceeded to the sit of the altercation but accused persons had already fled. Police medical forms were issued for the complainant to visit the hospital for treatment. On 3rd August, 2023 A1 was arrested and the complainant's phone was retrieved from him.

Issues.

The following are the issues for determination by this court.

1. Whether the accused is guilty of the offence of conspiracy to commit unlawful harm, cause unlawful damage, and steal contrary to section 23(1) of the Criminal Offences Act, 1960 (Act 29).
2. Whether the accused is guilty of the offence of causing unlawful damage contrary to section 172 (1) (b) of the Criminal Offences Act, 1960 (Act 29).
3. Whether the accused is guilty of the offence of causing unlawful harm contrary to section 69 of the Criminal Offences Act, 1960 (Act 29).
4. Whether the accused is guilty of the offence of stealing contrary to section 124(1) of the Criminal Offences Act, 1960 (Act 29).

Evidentiary burden.

Section 15(1) of the Evidence Act, 1975 (Act 323) stipulates that unless and until it is shifted, the party claiming that a person is guilty of crime or wrong-doing has the burden of persuasion on that issue. The Supreme Court decision of ***Commissioner of Police v Antwi***

[1961] GLR 408 affirms this principle. The prosecution therefore bears the burden of proving the guilt of the accused person in relation to the charges made against them.

The standard of proof required to persuade the court that a crime has been committed, as stipulated in section 11(2) of Act 323, is proof beyond reasonable doubt. In explaining what is required of the prosecution to meet this standard of proof, Justice Afia Serwa Asare-Botwe in the case of **The Republic v Mathias Appiah Bill [2016] DLHC 7654** quoted a portion of the book authored by the learned jurist **S.A. Brobbey** titled **Essentials of the Ghana Law of Evidence** as follows:

"Proof beyond reasonable doubt does not mean that there should be no doubt whatsoever in the case presented by the prosecution. It means that by the end of the trial, the prosecution must prove every element of the offence or the charge (but not all the facts) and show that the defence is not reasonable …

The consideration for the principle of proof beyond reasonable doubt can be illustrated this way: If there is any element of the charge which is essential for the accused to be convicted, that element should be established to the satisfaction of the trier of facts in such a manner that a reasonable mind could conclude that the accused is guilty of the offence or that the existence of the facts constituting the charge is more probable than its non- existence."

In the case of ***Linda Edzidor & Joshua Edzidor v The Republic [2013] DLCA 3597,*** Sowah, J.A. delivering the judgement of the Court of Appeal explained as follows:

"What is proof beyond reasonable doubt is not defined in the Evidence Act but in Miller vs. Minister of Pensions [1947] 2 All ER 372 which the court referred to in its judgment, Denning J. explained the term as meaning that the evidence against the accused must be so strong as to leave only a remote possibility in his favour which can be dismissed with the sentence "of course it is possible, but not in the least probable". The term does not mean proof beyond a shadow of doubt."

The prosecution is in this case therefore required to prove every element of each of the offences the accused has been charged with to the satisfaction of the court.

Issue 1

Section 23(1) of Act 29 states that:

"Where two or more persons agree to act together with a common purpose for or in committing or abetting a criminal offence, whether with or without a previous concert or deliberation, each of them commits a conspiracy to commit or abet the criminal offence".

The evidence before this court proves beyond reasonable doubt that the accused persons agreed to act together to beat up the complainant and cause damage to his property in retaliation for what he did to A1. I therefore find A1 guilty of conspiracy to commit unlawful harm and unlawful damage contrary to section 23(1) of Act 29.

Issue 2

Section 172 of Act 29 states:

(1) A person who intentionally and unlawfully causes damage to property

(a) to a value not exceeding one million cedis or without pecuniary value commits a misdemeanour

(b) To a value exceeding one million cedis commits a second degree felony.

(2) A person who intentionally and unlawfully causes damage to property in a manner which causes, is likely to cause, danger to life commits a first degree felony.

(3) For the purposes of this section, "property" means movable or immovable property.

Accordingly, the elements that the prosecution must prove are that:

1. the accused has caused the damage intentionally, and
2. the damage was caused unlawfully.

The evidence before the court proves beyond reasonable doubt that A1 with the assistance of the other accused persons intentionally damaged the property of the complainant for no legally just reason. I therefore find A1 guilty of causing unlawful damage to the property of the complainant contrary to section 172 of Act 29.

Issue 3

Section 69 of Act 29 states that "*a person who intentionally and unlawfully causes harm to any other person commits a second degree felony*". Section defines as unlawful harm as harm "*which*

is intentionally or negligently caused without any of the justifications mentioned in Chapter One of this Part".

Accordingly, the elements that the prosecution must prove are that the accused harmed someone, it was an intentional act, and there was no lawful justification for his action.

From the testimony of PW1, A1 and the other accused person attacked him and beat him with sticks and cutlasses because of a land dispute. A1 admitted that this was true, but he explained that PW1 started it. Having considered the evidence before me, I am satisfied that the harm caused to PW1 by the accused persons was intentional as it was premeditated. I am also satisfied that the harm caused was unlawful as it cannot be justified under section 31 of Act 29. I accordingly find A1 guilty of causing unlawful harm contrary to section 69 of Act 29.

Issue 4

Section 124(1) states that "*a person steals who dishonestly appropriates a thing of which that person is not the owner.*"

The essential ingredients of the crime of stealing which the prosecution ought to prove beyond reasonable doubt therefore are that:

a) the subject matter of the theft that is the phone belong to someone other than the accused;

b) the accused appropriated the phone; and

c) he did so dishonestly.

The evidence before this court shows that the phone was taken by one of the other accused persons and ended up with A1. A1 explains that he had attempted to return the phone unsuccessfully. I am therefore satisfied that the phone was not appropriated by A1 and that after it came into his custody, he made diligent efforts to return it. I therefore find A1 not guilt of stealing the phone contrary to section 124(1) of Act 29.

<u>Conviction</u>: The 1st Accused, Prince Kotey, is hereby convicted on counts one, two, and three.

<u>Sentence:</u> Having heard the prosecution's pre-sentencing statement and the convict's plea in mitigation, the convict is sentenced as follows. On count one, the convict is sentenced to

pay a fine of 250 penalty units and in default shall serve a term of two months on prison. On count two, the convict is sentenced to pay a fine of 300 penalty units and in default shall serve a term of two months in prison in default. On count three, the convict is sentenced to pay a fine of 300 penalty units and in default shall serve a term of two oaths in prison. The sentences are to run concurrently.

Restitution Order: The convict is to pay the complainant GHS6,000 for the damage caused to his property.

SGD.

H/W BIANCA GYAMERA-BEEKO